
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager *TJB*
DATE: April 20, 2022
SUBJECT: Consideration of Bid #S-15-22 for a Contract between the City of Cheyenne and Great Western Installations for the Synthetic Turf Safety Surfacing for Romero Park and Sun Valley Park Playgrounds Project

Bid #S-15-22 was solicited for the Synthetic Turf Safety Surfacing for Romero Park and Sun Valley Park Playgrounds Project.

Two (2) bidders responded to this bid, and the bid tabulation is attached.

The Bids were received from:

1. SynLawn of Wyoming. Rapid City, SD.
2. Great Western Installations. Logan, UT.

The bids were reviewed by Jason Sanchez (CRE), Teresa Moore (CRE), Sam Payne (CRE), and Brandon Peterson (CRE). Their recommendation is to accept the lowest responsive bid from Great Western Installations. The total cost is **\$143,051.88**.

Funding: 025-21-2111-45-46511 (Land and Water Conservation Grants) \$75,000.00
 013-21-2111-45-43903 (Development Impact Fees / Parks Improvements) \$68,051.88

BID TABULATION
CITY OF CHEYENNE - PURCHASING
BID OPENING: April 11, 2022

Synthetic Turf Safety Surfacing for Romero Park and Sun Valley Park Playgrounds Project

Bidder Name	Addendum (ONE)	Signed	Bid Guarantee	Federal Provisions	Total
SynLawn of Wyoming. Rapid City, SD. (With SYNTipede X43 Play Platinum)	YES	YES	YES	YES	\$ 208,493.14
SynLawn of Wyoming. Rapid City, SD. (With SYNPro60)	YES	YES	YES	YES	\$ 243,590.86
Great Western Installations. Logan, UT.	YES	YES	YES	YES	\$ 143,051.88

INQUIRIES REGARDING THIS BID SHOULD BE DIRECTED TO:
CITY OF CHEYENNE, PURCHASING MANAGER, PHONE: (307) 773-1045, EMAIL: TBARTTELBORT@CHEYENNECITY.ORG
MUNICIPAL BUILDING, 2101 O'NEIL AVE, ROOM 309, CHEYENNE, WYOMING 82001

TJB





CITY OF CHEYENNE, WYOMING
AGREEMENT

Bid No. S-15-22

APPROVED

By Stefanie Boster at 10:49 pm, Apr 19, 2022

Contract No. _____

THIS AGREEMENT, entered into this ____ day of _____, _____, by and between the CITY OF CHEYENNE, WYOMING, hereinafter referred to as the “CITY”, and **GREAT WESTERN INSTALLATIONS**, hereinafter referred to as the “CONTRACTOR”.

WITNESSETH that the Contractor and the City, for the considerations stated herein, mutually agree as follows:

ARTICLE 1. STATEMENT OF WORK. The Contractor shall furnish all supervision, technical personnel, labor, materials, machinery, tools, equipment, and services, including utility and transportation services, and perform and complete all work in an efficient and workmanlike manner in the construction of the “**Synthetic Turf Safety Surfacing for Romero Park and Sun Valley Park Playgrounds**” project all in strict accordance with the Contract Documents including all addenda thereto, numbered and dated: **Addendum One (1), dated March 31, 2022.**

ARTICLE 2. RESPONSIBLE DESIGNEE FOR THE CITY. The Contractor shall in any and all matters relating to the scope of services to be provided under this Contract or any other provisions herein, contact the City Engineer, or his/her designated representative.

ARTICLE 3. TIME FRAME FOR COMPLETION. The services to be performed under this Agreement shall commence on the date stipulated in the “Notice to Proceed” that will be issued by the City. The work shall be completed by **October 30, 2022.** If the work has not been completed within the time stipulated above, including any extensions of time issued by the City for excusable delays, the Contractor and his/her sureties shall pay the City fixed, agreed liquidated damages, as stipulated in the Supplemental Conditions, for each calendar day of delay until the work is completed.

ARTICLE 4. COMPENSATION AND METHOD OF PAYMENT. The CITY will pay the CONTRACTOR for the performance of the Contract in current funds, the sum of **One Hundred Forty-Three Thousand, Fifty-One Dollars, and Eighty-Eight Cents (\$143,051.88).** In the event there are changes in the estimated quantities shown on the Bid Proposal, the unit prices multiplied by the actual quantities shall govern, and the total contract amount will be adjusted accordingly. The City agrees to pay the above amount for contractual services in the following manner, upon receipt of appropriate documentation:

- a. The Contractor will be paid on a monthly basis for percentage of estimated work completed. Submittal will be at least seven (7) business days prior to the payable due date as established annually by the City Treasurer’s Office. The pay request shall be submitted on the Contract Payment Request Form and Itemized Pay Request or the AIA Documents G702 and G703. The engineer will review the estimate for approval prior to payment.

- b. The City will withhold five percent (5%) of the dollar value of the work completed for a minimum of forty-one (41) calendar days after Notice of Final Settlement has been published in accordance with Wyo. Stat. §16-6-116. Upon completion of the work under this Contract, the Contractor shall submit a Contractor's Certificate of Completion; the Consent of Surety; Final Waivers of Lien from the Contractor, and all Sub-Contractors, Suppliers and Materialmen; Affidavit of Release of Liens; Affidavit of Payment; and a current Workers Compensation Certificate. Final payment will not be made until the above documents have been received by the City and all items on the Punch List have been completed, and the advertising requirements have been met.

ARTICLE 5. CONTRACT. The executed Contract Documents shall consist of the following:

- | | |
|--------------------------------------|---|
| 1. This Agreement; | 8. Part IV Forms & Notices; |
| 2. Addenda; | 9. Specifications and Special Provisions; |
| 3. Invitation for Bids; | 10. Drawings; and, |
| 4. Instructions to Bidders; | 11. Land and Water Conservation Fund |
| 5. Signed Bid Proposal; | (LWCF), Project #56-00937, |
| 6. General Conditions and Insurance; | Certification Forms |
| 7. Supplemental Conditions; | |

This Agreement, together with other documents enumerated in this Article 5, which said other documents are as fully a part of the Contract as if hereto attached or herein repeated, forms the Contract between the parties hereto.

IN WITNESS WHEREOF, THAT the governing body of the City of Cheyenne has authorized the Mayor as Executive Officer of the City to enter into this Agreement, and that the parties hereto have caused this Agreement to be executed on the day and year in the first part herein written.

ATTEST:

CITY OF CHEYENNE, WYOMING

Kristina F. Jones, City Clerk

Patrick Collins, Mayor

Great Western Installations
Contractor
By

Title

975 S. Highway 89
Logan, UT 84321

Federal Project No.: 56-00937

Project Sponsor: City of Cheyenne

Land and Water Conservation Fund (LWCF) CFDA 15.916

This project is subject to an Agreement between the Project Sponsor and the Wyoming Department of State Parks and Cultural Resources (SPCR) to utilize **federal funding** from the Land and Water Conservation Fund **CFDA 15.916**.

The provisions of Wyo. State § 16-6-102 and 16-6-104, Preference for Wyoming labor and materials, DO NOT apply.

The contract shall be awarded to the lowest responsive and responsible bidder. (see PL §200.319)

As of August 2020, materials used must be produced in the United States consistent with federal law §200.322 Domestic preferences for procurements. All contracts and subcontracts must reference federal law §200.322.

The undersigned Bidder hereby proposes to furnish all materials (except materials furnished by the Project Sponsor) including machinery, tools, equipment, and supplies, and perform all labor necessary to complete the work described in accordance with the plans, current standard specifications, special provisions, and for the prices set forth in the **attached schedule**. The schedule is to include major work components with costs and expected completion dates and other requested information.

REGISTRATION WITH THE WYOMING SECRETARY OF STATE

- I. Bidder is a corporation or limited liability company? **YES (x)** **NO ()**
- II. Is the above Bidder currently registered with the Wyoming Secretary of State to do business in the State of Wyoming? **YES (x)** **NO ()** (Please attach a copy of your registration.)

CERTIFICATION OF SUSPENSION OR DEBARMENT

Bidder or any person(s) associated therewith in the capacity of owner, partner, director, or officer authorized to sign contracts certifies by signing this document that the responses to the following questions are true.

- I. Is any interested party currently under suspension, disqualifications, debarment, voluntary exclusion, or determination of ineligibility by any state or federal agency?
YES () NO (x)
- II. Has any interested party been suspended, debarred, disqualified, voluntarily excluded, or determined ineligible by any state or federal agency within the past three years?
YES () NO (x)
- III. Has any interested party have a debarment pending? **YES () NO (x)**
- IV. Has any interested party been indicted, convicted, or had a civil judgment rendered against (it) by a court of competent jurisdiction in any matter involving fraud or official misconduct within the past three years? **YES () NO (x)**
- V. If registered with SAM.gov, UEI:

If the answer is YES to any of I-IV above, insert Suspension or Debarment actions below:

APPLICABLE: YES () NO (x)

SUSPENSION OR DEBARMENT LISTING

Suspension or Debarment actions will not necessarily result in denial of award but will be considered in determining Bidder responsibility. For any Suspension or Debarment noted, indicate below to whom it applies, initiating agency and dates of action.

APPLIES TO WHOM	INITIATING AGENCY	DATES OF ACTION
N/A	N/A	N/A

The person or persons signing this document do hereby certify, under penalty of perjury, that the CERTIFICATION OF SUSPENSION OR DEBARMENT is a true and accurate statement.

DISADVANTAGED BUSINESS ENTERPRISE PARTICIPATION CERTIFICATION

Affirmative steps are required to utilize Minority Business Enterprises and Woman Business Enterprises ("Disadvantaged Business Enterprises" or "DBE") as possible sources of supplies, equipment, construction, and services. DBE's are minority or women owned or controlled businesses.

(I.) Bidder certifies that:

- (A.) It has taken and will take affirmative action to seek out and consider Disadvantaged Business Enterprises as potential subcontractors.
- (B.) It has taken and will take affirmative action to seek out and consider DBEs as potential suppliers.

(II.) Further, the Bidder shall:

- (A.) List all DBE's contacted (and those that responded) on the following form and complete the requested information for each.
- (B.) If applicable, mark that subcontracting is not anticipated.
- (C.) If subcontracting occurs, provide the list to the Project Sponsor within thirty (30) days of project completion.
- (D.) Make available upon request the bids submitted from each DBE and from non-DBE bidders.

DISADVANTAGED BUSINESS ENTERPRISE PARTICIPATION CERTIFICATION

The Bidder has contacted the following Disadvantaged Business Enterprises (DBE) to solicit quotations for work to be subcontracted or for materials to be used on this project. If one DBE firm is contacted as a supplier of materials and for other subcontract work (i.e. furnish benches as a supplier and providing labor as a subcontractor) the firm must be shown twice, once as a supplier and once for the subcontract work.

Information from all DBE firms that submitted quotes, whether solicited or not solicited, must be retained in the project file.

☐ Do Not Intend to (or did not) Subcontract Work

(Note: Add additional lines if needed.)

Disadvantaged Business Entity	Specific Subcontract Work or Materials Requested	Contact Method(s)	Contact Date(s)	Contact Result
Recreation - Installations	Install	Email	3/17/22	☒ No Response or Not Interested ☐ Not quoting on this project ☐ Quote submitted ☐ Bid Amount \$ ☐ Selected for Work or Materials

Disadvantaged Business Entity	Specific Subcontract Work or Materials Requested	Contact Method(s)	Contact Date(s)	Contact Result
				☐ No Response or Not Interested ☐ Not quoting on this project ☐ Quote submitted ☐ Bid Amount \$ ☐ Selected for Work or Materials
				☐ No Response or Not Interested ☐ Not quoting on this project ☐ Quote submitted ☐ Bid Amount \$ ☐ Selected for Work or Materials

Please note any exceptions here:

BIDDER CERTIFICATION

Bidder, either personally or through its duly authorized representatives, certifies that it has read, understood, and agreed to all terms and conditions of these certifications and clauses. If selected as a subcontractor, this document will be added to contract for the services.

Bidder certifies that a pricing schedule consisting of 3 pages is attached to this document.

Bidder Name: Great Western Installations

Bidder Mailing Address: 975 State HWY 89, Logan UT 84321

Email: LEWIS@gwpark.com / Taggart@gwpark.com

Phone Number: 435-246-9095

Printed Name of Bidder's Authorized Signatory: Lewis L. PANTER

Signature of Authorized Signatory: 

Date: 4/8/2022